

COMPANY LAW LECTURE

SPICe+: The Integrated Process for Company Incorporation

A Detailed Walkthrough of India's Single-Window Incorporation System

Sections, Linked Forms, Fees, Timelines & a Worked Example — Amended up to August 2026

Lecture Roadmap

Everything a Founder Files, in the Order They File It

1

Why SPICE+ Exists

The fragmented pre-2020 process, and its problems

3

Part A: Name Reservation

Fields, name rules, 20-day validity

5

The Linked Forms

e-MOA, e-AOA, AGILE-PRO-S, INC-9, DIR-2

7

Step-by-Step Filing Workflow

DSC to Certificate of Incorporation

9

Worked Example

Incorporating a private company start to finish

2

Legal Basis & the 10 Services

Companies (Incorporation) Amendment Rules, 2020

4

Part B: Incorporation Details

Capital, subscribers, directors, office

6

Documents Checklist

What must be uploaded, and in what format

8

Fees, Timelines & Applicability

Which entities use SPICE+, and how long it takes

10

2026 Reforms on the Horizon

Draft MCA amendment rules under consultation

PART 1

Why SPICe+ Exists

The Problem It Was Designed to Solve

Before SPICe+: A Fragmented Process

Before 2020, incorporating a company meant navigating at least five separate government portals — the MCA portal for the company itself, NSDL for PAN and TAN, the GST portal for GSTIN, EPFO for provident fund registration, and ESIC for employee state insurance — each with its own login, its own form set, and its own processing timeline.

Timeline of the Reform

INC-29: 2015: an early single-form attempt — name, incorporation, DIN, PAN/TAN in one form, but limited in scope

SPICe (INC-32): 2016: replaced INC-29; still handled only name, incorporation & DIN

SPICe+: 23 Feb 2020: replaced SPICe, bundling 10 services into one integrated web form

SPICe+ on MCA V3: 2022 onward: migrated to the redesigned MCA V3 portal, with further linked-form upgrades (AGILE-PRO → AGILE-PRO-S)

PART 2

Legal Basis & the Ten Integrated Services

Companies (Incorporation) Amendment Rules, 2020

The Legal Foundation

SPICe+ (Form INC-32) was notified by the Ministry of Corporate Affairs on 18 February 2020, in exercise of powers under Section 469 read with Section 4, 7, 12, and other relevant provisions of the Companies Act, 2013, through the Companies (Incorporation) Amendment Rules, 2020, effective 23 February 2020.

Ten Services in One Application

1

Name reservation

2

Incorporation of the company

3

DIN allotment (up to 3 directors)

4

Mandatory PAN issuance

5

Mandatory TAN issuance

6

GSTIN registration (optional)

7

EPFO registration

8

ESIC registration

9

Profession Tax registration (Maharashtra)

10

Opening of company bank account

PART 3

Part A: Name Reservation

The First Step in SPICe+

Reserving the Company Name

Part A is filed first and exclusively handles name reservation. Up to two proposed names may be submitted, ranked by preference, along with the significance of each name and the proposed main division of industrial activity (as per NIC code). Once approved, the name is reserved for 20 days, within which Part B must be filed — failing which the reservation lapses and the process must be repeated.

Key Naming Rules (Rule 8, Companies (Incorporation) Rules, 2014)

Must not be identical or too similar to an existing company/LLP name

Must not infringe a registered trademark, unless consent is obtained

Cannot contain words suggesting government patronage without approval

Must include a suffix reflecting the type of company (Pvt. Ltd., Ltd., OPC, LLP etc.)

PART 4

Part B: Incorporation Details

The Company Comes to Life

What Part B Captures

Capital Structure

Authorised and paid-up share capital, number and value of shares

Registered Office

Complete address, or an interim correspondence address if not yet finalised

Subscriber & Director Details

Names, addresses, nationality, DIN/PAN of subscribers and first directors

Applicant Type

Private, Public, OPC, Section 8, Producer, or Nidhi company selected up front

DIN Allotment through Part B

Up to 3 Director Identification Numbers may be applied for directly through SPICe+ Part B for individuals who do not already hold one (5 for a producer company). Directors who already hold a DIN simply provide it; no fresh DSC-based DIN application is needed for them. A 2026 draft amendment proposes raising this cap from 3 to 5 for all companies, though this remains under public consultation and is not yet in force.

PART 5

The Linked Forms

What Travels Alongside SPICe+

SPICe+'s Linked Forms

Form	Full Name	Purpose
INC-33 (e-MOA)	Electronic Memorandum of Association	The company's charter, filed electronically alongside Part B
INC-34 (e-AOA)	Electronic Articles of Association	Internal management rules, filed electronically
INC-35 (AGILE-PRO-S)	Application for GSTIN, EPFO, ESIC, Profession Tax, Opening of Bank Account, Shops & Establishment Registration	One linked form applying for six further registrations simultaneously
INC-9	Declaration by Subscribers & First Directors	Confirms fitness to act as director/subscriber; auto-generated where subscribers $\leq$ 20 and each holds a DIN/PAN
DIR-2	Consent to Act as Director	Signed consent from each proposed first director

AGILE-PRO-S: A Closer Look

AGILE-PRO-S (Application for Goods and Services tax Identification number, Employees' state Insurance corporation registration, Employees' Provident fund Organisation registration, Profession tax registration, Opening of bank account and Shops & establishment registration) is filed as Form INC-35, linked to SPICe+ Part B.

Registration	Status at Incorporation
GSTIN	Optional — applied for only if the applicant chooses to register at incorporation
EPFO	Mandatory for all companies incorporated on or after 15 February 2020
ESIC	Mandatory for all companies incorporated on or after 15 February 2020
Profession Tax	Mandatory for companies with a registered office in Maharashtra
Bank Account	Applied for through AGILE-PRO-S; current rules require this at incorporation (2026 draft rules propose making it optional)

PART 6

Documents Checklist

What Must Be Uploaded

Documents to Keep Ready

Identity & Address Proof

PAN (mandatory for Indian nationals), passport/voter ID/driving licence, and a recent utility bill (not older than 2 months) for every subscriber and director

Proof of Registered Office

Utility bill, and a No Objection Certificate from the owner if the premises are rented or shared

Digital Signature Certificates

Class 3 DSC for at least one subscriber/director to digitally sign the forms

Passport-size Photographs

Of each subscriber and first director, uploaded in the prescribed format

Format Requirements

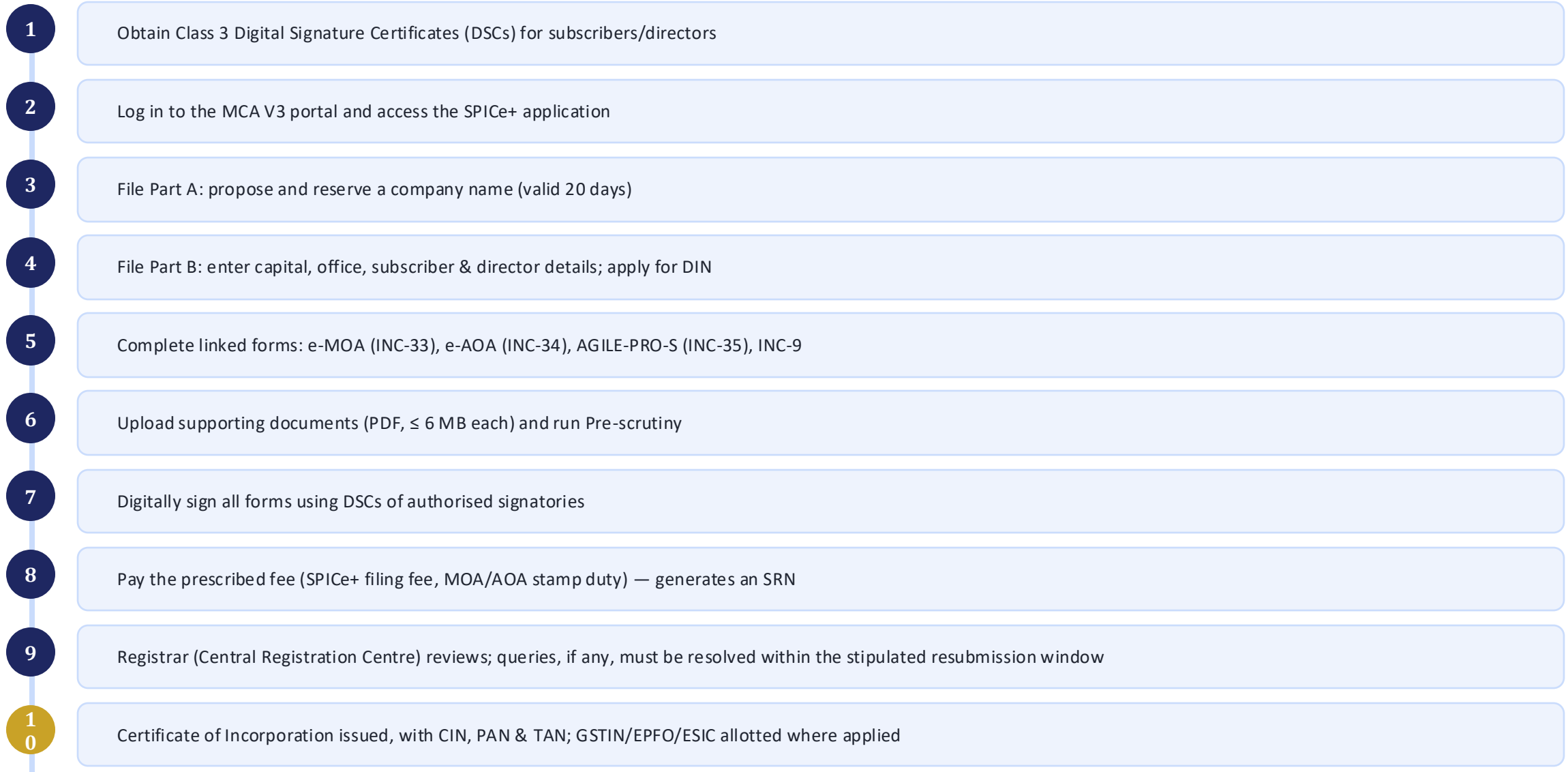
All attachments must be in PDF format, generally under 6 MB per file. Documents executed outside India must be notarised, and where applicable, apostilled or consularised. Use the built-in Pre-scrutiny feature on the MCA portal to check for common errors before final digital signing and submission.

PART 7

Step-by-Step Filing Workflow

From DSC to Certificate of Incorporation

The Complete SPICe+ Workflow



PART 8

Fees, Timelines & Applicability

Who Uses SPICe+, and How Long It Takes

Fees & Processing Time

Government Fees

- SPICe+ Part A/B filing fee (nominal; zero incorporation fee for companies with authorised capital up to ₹15 lakh under the Fee Rules)
- Stamp duty on MOA & AOA, calculated per the stamp legislation of the State where the registered office is situated
- PAN/TAN issuance fee bundled into the SPICe+ payment

Typical Timeline

- Part A name approval: often within 1–2 working days
- DSC procurement (if not already held): 1–2 working days
- Certificate of Incorporation: typically 7–10 working days from Part B submission, where documents are in order and no Registrar queries arise

Applicability: All Company Types

Private Ltd.

Public Ltd.

One Person Co.

Section 8 Co.

Producer Co.

Nidhi Co.

Worked Example: ‘Nimbus Consulting Private Limited’

Stage	What Happens
Part A	Two founders propose ‘Nimbus Consulting Private Limited’ and an alternative; name is approved and reserved for 20 days
Part B	Authorised capital ₹10 lakh; 2 subscribers who are also first directors; registered office in Pune; both directors apply for DIN through the form
Linked Forms	e-MOA (object: management consultancy services) and e-AOA (Table F, modified) filed; AGILE-PRO-S applied for GSTIN, EPFO, ESIC and bank account; INC-9 auto-generated (2 subscribers, both hold PAN)
Documents	PAN & Aadhaar of both directors, utility bill for the Pune office, NOC from the property owner, passport photos, DSCs of both directors
Submission	Forms pre-scrutinised, digitally signed, fees and stamp duty paid — SRN generated
Outcome	Certificate of Incorporation issued in 8 working days, bundled with CIN, PAN, TAN and GSTIN; company must now file Form INC-20A within 180 days to commence business (Sec. 10A)

PART 9

2026 Reforms on the Horizon

Draft MCA Amendment Rules — Not Yet in Force

What May Change Next

The MCA issued a public notice on 8 April 2026 (Ref: CL-V Section, Policy-01/2/2025-CL-V-MCA-Part(2)) proposing draft Incorporation Amendment Rules, 2026. Stakeholder comments were invited until 9 May 2026 via the MCA e-Consultation Module. As of August 2026, these remain proposals — not yet gazetted or in force.

DIN Cap Raised

From 3 to 5 directors per SPICe+ application

Form DIR-12 Omitted

MOA subscribers to receive deemed consent as directors, streamlining the process

AGILE-PRO-S Made Optional

EPFO, ESIC & bank account registrations no longer mandatory at incorporation

Risk-Based Office Verification

Amended Rule 25 shifts from mandatory physical inspection to a discretionary, risk-based model; co-working spaces explicitly recognised

Discussion & Questions

In groups, complete a mock SPICe+ Part A and Part B on paper for a hypothetical private company — propose two names, decide capital structure, and list every linked form you would need to file.